

26NWCV02171 26NWCV02171

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Case Number: 26NWCV02171 Hearing Date: September 23, 2026 Dept: C

TYLER v. VOLKSWAGEN GROUP OF
AMERICA, INC, et al.

CASE NO.: 26NWCV02171

HEARING: 9/23/26 @ 9:30 AM

#10

TENTATIVE RULING

I.

Defendant McKenna

Motor Company, Inc. dba McKenna Audi's Demurrer to Plaintiff JUSTINE BETTS

TYLER's Complaint is SUSTAINED with 20 days leave to amend.

II.

The Case

Management Conference scheduled for October 8, 2026 is ADVANCED to today and
VACATED. Trial is set for March 16, 2028

at 10:00 a.m. in Dept. SE-C. A Final

Status Conference is set for March 2, 2028 at 10:00 a.m. in Dept. SE-C.

Moving Party to give

NOTICE.

Defendant

McKenna Motor Company, Inc. dba McKenna Audi (erroneously sued as McKenna Motor

Company, Inc. dba Audi McKenna Norwalk) (Defendant) demurs to Plaintiff JUSTINE BETTS TYLER's (Plaintiff) fourth cause of action for negligent repair on the ground that it fails to state facts sufficient to constitute a cause of action and is barred by the economic loss rule.

BACKGROUND

This

is a lemon law case. Plaintiff purchased a 2023 Audi Q5, on June 24, 2026. (Complaint ¶ 9.) Defects and nonconformities to warranty manifested themselves within the applicable express warranty period. The nonconformities substantially impaired the use, value and/or safety of the Subject Vehicle. (Complaint, ¶ 32.) Based thereon, the Complaint asserts causes of action for:

1.

Violation of the Song-Beverly Act – Breach of Express Warranty

2.

Violation of the Song-Beverly Act – Breach of Implied Warranty

3.

Violation of the Song-Beverly Act – Section 1793.2

4.

Negligent Repair

LEGAL

STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are

judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (*S. Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Id.*)

DISCUSSION

Fourth

Cause of Action: Negligent Repair

NEGLIGENT

REPAIR: The elements are: 1) Legal duty owed to plaintiffs to use due care; 2) breach of duty; 3) causation; and 4) damage to plaintiff. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Defendant

argues that Plaintiff’s negligent-repair cause of action lacks the requisite factual allegations to substantiate the claim and merely states legal conclusions.

In

opposition, Plaintiff argues that Plaintiff alleges that he delivered the vehicle for professional service in the form of a repair and reasonably expected that Defendant MCKENNA AUDI would perform the repair with care and skill. (Complaint ¶¶ 9-20, 68-72.). Plaintiff alleges the following:

Plaintiff first presented the Subject Vehicle for repairs in July 2025, with approximately 30,008 miles on the odometer, and reported the

sunroof exhibiting structural nonconformities. Additionally, the Subject Vehicle exhibited stalling. Furthermore, excessive shaking emitted while driving. Additionally, the door locks malfunctioned. Moreover, the driver's window emitted an abnormal noise while active. (Complaint, ¶ 15.)

In August 2025, with approximately 30,895 miles on the odometer, Plaintiff presented the Subject Vehicle again and reported stalling recurrently. Additionally, the driver's window continued to emit an abnormal noise. Furthermore, the Dome light malfunctioned. (Complaint, ¶ 16.)

Plaintiff presented the Subject Vehicle again in November 2025, with approximately 32,798 miles on the odometer, and reported the infotainment system malfunctioned. Additionally, the "Lane Assist Malfunction" message appeared on the instrument cluster. Furthermore, the Subject Vehicle excessively shook while turning. Moreover, the driver's window emitted an abnormal noise for the third time. (Complaint, ¶ 17.)

In December 2025, with approximately 33,240 miles on the odometer, Plaintiff presented the Subject Vehicle again and reported an abnormal noise emitting while turning. Additionally, the Dome light malfunctioned recurrently. Furthermore, the driver's window emitted an abnormal noise for the fourth time. (Complaint, ¶ 18.)

Plaintiff presented the Subject Vehicle in January 2026, with approximately 34,073 miles on the odometer, and reported the "Lane Assist Malfunction" message reappearing. Additionally, an abnormal noise continued to emit while turning. Furthermore, the Dome light malfunctioned for the third time. (Complaint, ¶ 19.)

In March 2026, with approximately 35,135 miles on the odometer, Plaintiff presented the Subject Vehicle again and reported the "Lane Assist Malfunction" message appearing for the third time. In addition, the Freeway Lane Assist feature malfunctioned. Additionally, an abnormal noise emitted while turning for the third time. (Complaint, ¶ 20.)

Plaintiff delivered the Subject Vehicle to Defendant AUDI MCKENNA NORWALK for repairs on numerous occasions. (Complaint, ¶ 69.)

Therefore,
Plaintiff apprises Defendant of the factual basis for the claim against it. (Semole

v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.)

Economic Loss Rule

The economic loss rule provides that “where a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his [or her] remedy is said to be in contract alone, for he [or she] has suffered only economic losses.” (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 988.) “Tort damages have been permitted in contract cases where a breach of duty directly causes physical injury; for breach of the covenant of good faith and fair dealing in insurance contracts; for wrongful discharge in violation of fundamental public policy; or where the contract was fraudulently induced.... in each of these cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm.” (Robinson, *supra*, 34 Cal.4th at 989–990.)

In Robinson, the California Supreme

Court carved out a “narrow” and “limited” exception to the economic loss rule, holding that “a defendant’s affirmative misrepresentations on which a plaintiff relies and which expose a plaintiff to liability for personal damages independent of the plaintiff’s economic loss” is excluded from the economic loss rule. (Robinson, *supra*, 34 Cal.4th at 993.)

Plaintiff argues there is an exception to the

economic loss rule where the contract is services rather than the sale of goods. (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764.) North American Chemical recognized the “fundamental principle” that “accompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as a breach of contract.” (*Id.* at p. 774.)

Since North American Chemical was

decided, however, the California Supreme Court has narrowed the exceptions to the economic loss rule. In *Erllich v.*

Menezes (1999) 21 Cal.4th 543, the court determined that

homeowners could not recover tort damages for emotional distress caused by a contractor’s negligent construction of their home. A breach of contract is tortious “only when

some independent duty arising from tort law is violated. [citation] If every negligent breach of a contract gives rise to tort damages, the limitation [upon tort damages] would be meaningless, as would the statutory distinction between tort and contract remedies.” (Id. at p. 554.) “The benefits of broad compensation must be balanced against the burdens on commercial stability. ‘Courts should be careful to apply tort remedies only when the conduct in question is so clear in its deviation from socially useful business practices that the effect of enforcing such tort duties will be ... to aid rather than discourage commerce.’” (Id. (citing *Freeman & Mills, Inc. v. Belcher Oil Co.* (1995) 11 Cal.4th 85, 109).)

The Robinson court held “the economic loss rule does not bar [Plaintiff’s] fraud and intentional misrepresentation claims because they were independent of [Defendant’s] breach of contract.” (*Robinson Helicopter v. Dana Corp.*, supra, 34 Cal.4th 979, 991.) The court carved out a “narrow” and “limited” exception to the economic loss rule, holding that “a defendant’s affirmative misrepresentations on which a plaintiff relies and which expose a plaintiff to liability for personal damages independent of the plaintiff’s economic loss” is excluded from the economic loss rule. (Id. at 993.) Here, Plaintiff alleges a claim for negligent repair which does not fall within the narrow exceptions carved out by the California Supreme Court in Robinson. Plaintiff does not allege that Defendant engaged in any intentional misconduct or made any affirmative misrepresentations. Nor does Plaintiff adequately allege an independent duty giving rise to tort liability. (*Erllich v. Menezes*, supra, 21 Cal.4th 543, 554.) As alleged, the fourth cause of action is barred by the economic loss rule.

Lastly, Plaintiff relies on *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905 for the proposition that the economic loss rule does not bar a negligence cause of action for professional services. (*Sheen*, at p. 933.) However, Plaintiff cites to no authority which supports a negligent repair cause of action in the context of automotive repairs.

Accordingly, the demurrer to the fourth cause of action SUSTAINED with 20 days leave to amend.